

4	Camargo vs. Advanced Auto Refinishing Inc. 2026-01538636	Demurrer to Complaint <i>First Amended Complaint filed 5/6/2026</i> Off Calendar
5	Chung vs. Le 2025-01483307	Motion for Leave to Amend Code of Civil Procedure section 473(a)(1) states, “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (Sullivan v. City of Sacramento (1987) 190 Cal.App.3d 1070, 1081.) Here, Defendants seek leave to amend their answer to allege new defenses related to their assertion that the parties reached an enforceable settlement, but Plaintiff sought to impose new material terms and refused to proceed with the settlement. The motion is unopposed. There is a strong policy favoring amendment. Tentative Ruling: The Motion for Leave to Amend Answer by Defendants Trinh Le and Dao Le is GRANTED. Defendants shall file and serve their amended answer within ten days.

6	Gary, M.D., vs. Intefusion, LLC 2025-01507916	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference Demurrer Defendants InteFusion, LLC; Julie Bolter; and Brad Bolter’s Demur to the Complaint. <i>3rd and 4th Causes of Action – Intentional and Negligent Misrepresentation</i> “ ‘The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’ ” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Lazar, supra, 12 Cal.4th 631, 645 (cleaned up).) Plaintiffs have alleged the intentional and negligent misrepresentations claims with sufficient specificity. Plaintiffs allege: “In or about May 2017, Julie, on behalf of herself as an individual and on behalf of InteFusion, knowingly misrepresented to Plaintiffs that they were billing experts in Medicare, TRICARE, and other insurance providers, especially for billing integrative medical services and infusion claims. Julie told Plaintiffs that she and InteFusion could properly bill the services provided by JJGMD in a more efficient and effective way and estimated that it could increase Plaintiffs’ billing revenue by approximately 15%.” (Compl., ¶ 35.) Additionally, Defendants’ representation about Defendants’ expertise in billing services is an existing fact and not future conduct.
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